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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

SHAHIDAH JOHNSON AND CHARLES JOHNSON,

Plaintiffs,

v.

GENERAL MOTORS, LLC; and DOES 1 through 10, inclusive,

Defendant.

Case Number 25AVCV00268

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing:

July 7, 2026

Dept. A-14

Judge William H. Forman

I. Background

The instant Song-Beverly Consumer Warranty Act ("Song Beverly") case arises from alleged nonconformities and defects to warranty in Plaintiffs Shahidah and Charles Johnson's 2017 Chevrolet Malibu, VIN 1G1ZE5ST1HF201713 (hereafter "Vehicle"), which was manufactured and/or distributed by Defendant General Motors, LLC ("GM"). The vehicle was purchased at Antelope Valley Chevrolet in Lancaster, CA, an authorized dealer.

On February 28, 2025, Plaintiffs filed their initial complaint.

On January 12, 2026, Plaintiffs filed their Second Amended Complaint ("SAC") against GM and Does 1 through 10, alleging five causes of action: (1) violation of Civil Code section 1793.2, subdivision (D); (2) violation of Civil Code section 1793.2, subdivision (B); (3) violation of Civil Code section 1793.2, subdivision (A)(3); (4) breach of the implied warranty of merchantability; (5) fraudulent concealment.

In the SAC, Plaintiffs allege that they entered into a warranty contract with GM on July 4, 2017, regarding their vehicle. (SAC ¶ 6.) Plaintiffs allege that during the express warranty period, the vehicle suffered from engine defects, transmission defects, electrical defects, and a host of other defects and nonconformities. (SAC ¶ 11.) On June 22, 2018, Plaintiffs took the vehicle to an authorized repair facility with complaints about a failure to start – the technician performed warranty repairs and at pick up Plaintiffs were told that the vehicle had been repaired and was working as intended. (SAC ¶ 23.) On March 1, 2018, Plaintiffs once again took the vehicle in for the check engine light, and once again a technician performed warranty repairs and Plaintiffs were told that the vehicle was repaired and working as designed. (SAC ¶ 24.) On June 21, 2022, Plaintiffs took the vehicle in for reduced power and check engine light issue, during which time the technician recommended replacement of the engine due to failure of critical parts. (SAC ¶ 25.) Allegedly it was at this time that Plaintiffs allegedly learned of GM's wrongful conduct. (SAC ¶ 26.)

On February 10, 2026, GM filed its Demurrer to the SAC as to the first, second, and third causes of action on the grounds of being barred by the relevant statutes of limitations and statute of repose.

On June 29, 2026, Plaintiffs untimely filed an opposition.[1] The opposition was due no later than June 23, 2026.

On June 30, 2026, GM filed a reply.

II. Analysis

Standard for Demurrer –The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civ. Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Concerning the legal sufficiency of a pleading, the sole issue on demurrer is whether the facts pleaded, if true, state a valid cause of action – i.e., if the complaint pleaded facts that would entitle the plaintiff to relief. (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 339.)

Meet and Confer – On review of the moving papers, the Court finds that GM satisfied the meet and confer requirements pursuant to Code of Civil Procedure section 430.41 to bring the instant demurrer. (Kristen Allison Decl., ¶ 2.) Accordingly, the Court turns to the merits.

First, Second, and Third Causes of Action (Violation of Civil Code section 1793.2, subdivisions (D), (B), and (A)(3)) –

GM contends, and Plaintiffs do not dispute, that the first, second, and third causes of action are subject to the statutes of limitation and repose set forth in Code of Civil Procedure section 871.20. An action covered by Section 871.20 shall be brought “within one year after the expiration of the applicable express warranty,” and “[n]otwithstanding subdivision (a), ...shall not be brought later than six years after the date of original delivery of the motor vehicle.” (Code Civ. Proc., § 871.21, subdivisions (a)-(b).)

GM contends that since Plaintiffs filed the initial complaint on February 28, 2025, and Plaintiffs entered into the warranty contract for the vehicle on July 4, 2017 (presumably the delivery date), then the six-year statute of repose period ended on July 3, 2023. (Mot., at p. 5.) As to the statute of limitations, pursuant to Code of Civil Procedure section 871.21, subdivision (a), because the express warranties for the bumper to bumper and the powertrain expired on July 3, 2020 & July 3, 2022, then the statute of limitations ran, at the latest on July 3, 2023, Plaintiffs original complaint filed on February 28, 2025 was past the July 3, 2023 end date of both the statute of limitations and statute of repose. (Id.)

Plaintiffs do not contest this timeline. Rather, they argue that 1) AB 1755 was enacted in September 2024 and only became effective on January 1, 2025, and therefore should not apply retroactively to claims that accrued years, and 2) in any event, Plaintiffs have pled facts sufficient for equitable tolling of the subject claims.

As the Court determined in its order on the previous demurrer, Section 871.21 is to be applied retroactively.

As to the tolling allegations, GM argues that the SAC fails to allege any facts establishing that the first and third tolling circumstances under Code of Civil Procedure, section 871.21, subdivision (c), are satisfied. (Id.) For the second tolling provision, GM argues that the SAC only alleges that the vehicle was out of service for three days and thus the claims may be tolled a maximum of three days, which is not enough to overcome the deficit. (Mot., at pgs. 5-6.) In reference to the SAC's allegations to class action, discovery rule, repair doctrine, and estoppel tolling, GM maintains the argument that the Legislature did not expressly apply these rules and doctrines to the statute of repose here, and in any case, the SAC fails to sufficiently plead facts establishing that the statute would be tolled under these doctrines. (Mot., at pg. 6.)

Lastly, GM argues that if Plaintiffs should argue in opposition that the statute of limitations and statutes of repose do not apply to the because it would be a “retroactive” application, GM points to this Court's prior demurrer ruling as to the FAC, and argues that since the opt-in provision did not go into effect until April 1, 2025, GM could not have been required to opt-in. (Id.)

In opposition, as to equitable tolling, Plaintiffs argue that they have cured the defects noted in the Court's prior order to allege that Plaintiffs only became aware of GM's breach after multiple repair attempts. (Opp., at pg. 2.) As to the statute of limitations argument, Plaintiffs contend that the new limitations period cannot be retroactively applied to run pre-effective date. (Id.) AB 1755 was enacted in September 2024 and became effective four months later. Plaintiffs argue that since courts have previously held that eight months is a reasonable time after a statutory filing period change, their complaint was filed within a reasonable time after the passage of the new law. (Id.)

As the Court noted in its previous Order on December 9, 2025, Code of Civil Procedure section 871.21 became effective on January 1, 2025, rendering it operative at the time Plaintiffs filed their original complaint on February 28, 2025. The cases Plaintiffs cite to in support of their retroactive argument are either not binding on this Court due to being unpublished or do not pertain to Code of Civil Procedure section 871.21. (Opp., at p. 2.) Code of Civil Procedure section 871.30, subdivision (a) states:

“Within 30 days of the effective date of the act adding this section [i.e., by May 1, 2025], a manufacturer may elect to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles sold in the year 2025 and in all prior years by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs.”

(Emphasis added.) GM opted into the new lemon law procedures on April 23, 2025. (California Dept. of Consumer Affairs, Arbitration Certification Program Website.) Plaintiffs do not allege in their Complaint, or argue in their Opposition, that GM did not opt in to Section 871.21. As the statute expressly applies to sales of motor vehicles in years prior to 2025, the legislature provided that the statute would apply retroactively.

Plaintiffs argue that it would be unfair and a deprivation of their rights to due process to apply a statute retroactively so as to “wipe out an accrued cause of action that is not barred by the then applicable statute of limitations.” (Opposition, at 2.) But the enactment of AB1755 was not a surprise. Plaintiffs had from September 2024 to January 1, 2025 to file their claim as to a vehicle they purchased over seven years before. Plaintiffs admit that “hundreds and hundreds of people” did just that. (Opposition, at 3.)

Given the retroactive application of the statute, the only question is whether there is some reason the statutes of repose and limitations do not bar Plaintiffs’ claims

Plaintiffs argue that, notwithstanding the statutes of repose and limitations, their claims are subject to equitable tolling. The elements of the equitable tolling rule are: (1) timely notice to defendant; (2) lack of prejudice; and (3) Plaintiff’s reasonable and good faith conduct. (McDonald v. Antelope Valley Community College Dist. (2008) 45 Cal.4th 88, 102.)

As to the statute of repose, Plaintiff’s argument is a non-starter. Statutes of repose are generally not subject to equitable tolling. (See MACH-1 RSMH, LLC v. Darras (2024) 103 Cal.App.5th 1288, 1302 [“statutes of repose are generally not subject to tolling”].); Plaintiffs’ cite no authority recognizing equitable tolling of a statute of repose, and the Court is aware of none. Code of Civil Procedure section 871.21, subdivision (b) therefore bars Plaintiffs’ claims regardless of any equitable doctrine Plaintiffs invoke.

As to the statute of limitations, the Court finds that Code of Civil Procedure section 871.21, subdivision (c) does not necessarily preclude equitable tolling of the Code of Civil Procedure section 871.21, subdivision (a) statute of limitations under the appropriate circumstances, as the conditions of Code of Civil Procedure section 871.21, subdivision (c) are not exclusive. Plaintiffs allege that GM is estopped from relying on any statutes of limitation because GM fraudulently concealed defects and refused to investigate or remedy said issues. (SAC ¶¶ 41-44.) Plaintiffs’ conclusory statements of fraudulent concealment do not establish the elements for equitable tolling.

Accordingly, the Court SUSTAINS the demurrer.

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Leave to Amend –

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy, (1976), 18 Cal.3d 335, 348.) While under California law leave to amend is liberally granted, “leave to amend should not be granted where, in all probability, amendment would be futile.” (Vaillette v. Fireman’s Fund Ins. Co. (1993), 18 Cal. App. 4th 680, 685). “A trial court does not abuse its discretion when it sustains a demurrer without leave to amend if either (a) the facts and the nature of the claims are clear and no liability exists, or (b) it is probable from the nature of the defects and previous unsuccessful attempts to plead that the plaintiff cannot state a claim.” (Cantu v. Resolution Trust Corp. (1992), 4 Cal.App.4th 857, 889.)

The Court SUSTAINS the Demurrer without leave to amend because, regardless of whether Plaintiffs could plead facts sufficient to establish equitable tolling, the six-year statute of repose stands as an insurmountable barrier. The Court also

notes that Plaintiffs previously were given leave to plead facts to support equitable tolling, and again have failed to do so.

III. Conclusion

Defendant General Motors, LLC's Demurrer is SUSTAINED without leave to amend.

[1] The Court notes that while the opposition was untimely, because GM filed a reply and indicated it "wishes to proceed with[] the Demurrer without delay," although it disputes opposing counsel's contention that the untimely filing was due to mistake, the Court considers the opposition on its merits.